

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPP054442: JOHN MMB DOE, AN INDIVIDUAL vs MOORPARK UNIFIED
SCHOOL DISTRICT, A CALIFORNIA LOCAL PUBLIC ENTITY, et al.**

07/16/2026 in Department 42

**Motion to Compel Further Response to Plaintiff's Requests for Production, Set One from
Defendant Moorpark Unified School District and Request for Sanctions**

**Motion to Compel Further Responses to Plaintiff's Special Interrogatories, Set One from
Defendant Moorpark Unified School District and Request for Sanctions**

Motions: 1) Plaintiff's Motion to Compel Further Response to Requests for Production (*Opposed*)
2) Plaintiff's Motion to Compel Further Response to Special Interrogatories
(*opposed*)

Tentative Ruling:

The Court intends to GRANT Plaintiff's two motions to compel Defendant Moorpark Unified School District's further discovery responses, as requested except for those interrogatories/requests mooted by supplemental responses.

Defendant Moorpark Unified School District (MUSD) is ordered to provide further code-compliant responses within ten days.

Sanctions are imposed against Defendant and counsel, jointly and severally, in the amount of \$2,000 per motion, \$4,000 total, payable within ten days.

Grounds:

Requests for Production (RFPs):

Plaintiff seeks further responses to Requests for Production Nos. 2, 5, 6, 10, 11, 12, 17, 18, 19, 22, 25, and 26, as well as sanctions of \$3,000 against Defendant and counsel. The requests seek documents regarding Gladys Macias' personnel file, identities of potential pertinent witnesses with knowledge of Macias' history of sexual abuse and abuse of Plaintiff, and Defendant MUSD's knowledge and handling of Macias' sexual abuse of Plaintiff, which are necessary to litigate these claims. Plaintiff argues that the objections are meritless and not supported, and no privilege log produced. Plaintiff has attached the declaration of counsel Cristina J. Nolan, claiming \$500 per hour and that six hours of work are expected for resolution of these issues.

Special Interrogatories (SIs):

Plaintiff seeks further responses to Special Interrogatories Nos. 4, 5, 10, 11, 12, 14, 15, 16, and 17, as well as sanctions of \$3,000 against Defendant and counsel. The information requested goes directly towards Plaintiff's causes of action for negligent supervision, negligent retention, and negligent failure to train, warn, or educate. Plaintiff contends that the objections are meritless and not supported, and no privilege log was produced. Plaintiff has attached the declaration of counsel Cristina J. Nolan, claiming \$500 per hour and that six hours of work are expected for resolution of these issues.

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Discussion:

I. Legal Standard

A discovery response may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. If the propounding party, on receipt of a response to interrogatories, deems that (1) an answer to a particular interrogatory is evasive or incomplete, (2) an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate, or (3) an objection to an interrogatory/demand is without merit or too general, that party may move for an order compelling a further response. (See Code Civ. Proc., § 2030.310, subd. (a) and § 2031.310, subd.(a).)

A party is entitled to discover any matter, not privileged, that is relevant to the subject matter. (Code Civ. Proc., § 2017.010.) Relevance is determined in accordance with the liberal policies underlying the discovery procedures and doubts as to relevance should generally be resolved in favor of permitting discovery. (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal.3d 785, 790.)

“The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) Once good cause was shown, the burden shifts to the responding party to justify any objection. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) In the case of interrogatories, the moving party has no burden of showing good cause for further responses, unlike with requests for production, which carry a statutory requirement of showing good cause. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221.)

As the party asserting objections to the discovery requests, the opposing party has the initial burden of justifying them. (*See ibid.*)

The court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless it finds that the party or attorney acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d) and § 2031.310, subd. (h).)

II. Discovery at Issue – Two Motions to Compel Further Responses

As a preliminary matter, it is uncontested that after the motions were filed, MUSD provided supplemental responses to RFPs 19 and 22, as well as Special Interrogatories 11 and 12. As a result, the motions have been partially MOOTED.

While Plaintiff argues that the new responses are still insufficient, the parties have not provided the supplemental responses for the Court’s review, and they will need to be the subject of further meet and confer attempts in any event.

The following discovery requests remain at issue:

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A. Requests for Production

- Request for Production No. 2: “IDENTIFY all DOCUMENTS which REFER, RELATE TO or EVIDENCE MACIAS’ application to work for YOU.”
- Request for Production No. 5: “All DOCUMENTS in YOUR possession RELATED TO or REGARDING to MACIAS.”
- Request for Production No. 6: “ANY COMMUNICATIONS, and/or DOCUMENTS in YOUR possession, custody or control, REGARDING or pertaining to MACIAS, including but not limited to, complaints, allegations, sexual abuse files, employment records, COMMUNICATIONS to or from MACIAS, and COMMUNICATIONS REGARDING MACIAS.”
- Request for Production No. 10: “EACH COMMUNICATION, including ANY social media posts or DOCUMENTS, RELATED TO the SEXUAL MISCONDUCT of MACIAS.”
- Request for Production No. 11: “ALL DOCUMENTS RELATING TO MACIAS’ employment with YOU, including, but not limited to, ANY resume’s, referrals, references, notes, verifications, job offers, employment contracts, employment applications, letters, handbooks, benefit descriptions, job descriptions, performance evaluations, policy statements, memoranda, notes, disciplinary records, commendations, awards, records of termination, and records of resignation.”
- Request for Production No. 12: “ALL DOCUMENTS RELATING TO MACIAS’ employment with the MUSD, including, but not limited to, his complete employment file, and/or dismissal and DISCIPLINE.”
- Request for Production No. 17: “ALL DOCUMENTS RELATING TO discipline received by MACIAS from YOU.”
- Request for Production No. 18: “ALL DOCUMENTS RELATING TO MACIAS’ resignation or termination from YOU.”
- Request for Production No. 25: “ANY DOCUMENTS RELATED TO ANY training YOU provided to MACIAS at ANY time.”
- Request for Production No. 26: “ANY EMPLOYEE RELATED DOCUMENTS that YOU provided to MACIAS, at any time, including, but not limited to, policies, handbooks, training materials, paychecks, guidelines, course of conduct books, job descriptions.”

B. Special Interrogatories

- Special Interrogatory No. 4: “IDENTIFY all DISCIPLINARY ACTION taken by YOU against MACIAS.”
- Special Interrogatory No. 5: “For each DISCIPLINARY ACTION IDENTIFIED by YOU in YOUR response to Special Interrogatory No. 4, state the reason(s) that each such DISCIPLINARY ACTION was taken against MACIAS.”
- Special Interrogatory No. 10: “Do you dispute that MACIAS committed SEXUAL MISCONDUCT against PLAINTIFF.”
- Special Interrogatory No. 14: “State the total number of complaints of SEXUAL MISCONDUCT and/or sexual harassment that YOU received, against employees of MUSD, from 2000 to the present.”

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- Special Interrogatory No. 15: “IDENTIFY each employee of MUSD whom you received a complaint of SEXUAL MISCONDUCT and/or sexual harassment, from 2000 to the present.”
- Special Interrogatory No. 16: “IDENTIFY each employee of MUSD whom YOU INVESTIGATED for SEXUAL MISCONDUCT and/or sexual harassment, from 2000 to the present.”
- Special Interrogatory No. 17: “IDENTIFY each employee of MUSD against whom YOU took DISCIPLINARY ACTION for SEXUAL MISCONDUCT and/or sexual harassment, from 2000 to the present.”

C. Objections:

As for the boilerplate objections asserted in the Separate Statements, the Court does not find any of the requests vague or ambiguous. Even where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) The information sought by the subject interrogatories is apparent.

Likewise, with respect to undue burden, “[t]he objection based upon burden must be sustained by evidence showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” (*West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County* (1961) 56 Cal.2d 407, 417.) The court in *West Pico* noted that there was no estimate of the total number of hours, the extent of the burden “was not specifically set forth,” and there was no evidence of oppression. (*Ibid.*) MUSD fails to provide such information and therefore fails to justify the objection.

Regarding claims of privilege, if any information is being withheld based on the work product doctrine or attorney client privilege, then MUSD must provide a privilege log. (See *Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181, 1188-89.) They have not shown that this objection is justified, but it will be preserved and a privilege log will be ordered to the extent called for by the further responses.

As for the overbroad objections, while several of the special interrogatories, i.e., 14-17, could be seen as calling for too broad a period of time, the requests are not facially objectionable. The Court finds that incident actions that predate and postdate the instant incident action are sufficiently relevant. “[P]lacing the defendant’s wrongful conduct into the context of a continuing pattern and practice [allows] an ‘individual plaintiff [to] demonstrate that the conduct toward [her] was more blameworthy or warrants a stronger penalty to deter continued or repeated conduct of the same nature.’” (*Watchtower, supra*, 246 Cal.App.4th at 592 (quoting *Johnson v. Ford Motor Co.* (2005) 35 Cal.App.4th 1191, 1206 fn. 6).) The issue is a relevant factor in determining punitive damages. (*Id.*) MUSD’s treatment towards other employees who have sexually abused students or towards students who have been sexually abused shows the intent of MUSD’s actions

The relevance objections are also overruled. The direct relevance to the causes of action asserted against the District is clear as noted above.

The primary objections lodged are on grounds of privacy and that Macias did not consent to disclosure. It is undisputed that personnel/employment records are private information, and such disclosure would constitute a serious invasion of privacy. It follows that Plaintiff must show a

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compelling need for the information sought, i.e. that the information is directly relevant and essential to the fair resolution of the lawsuit. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.) To obtain information protected by the right to privacy, a propounding party must first make a threshold showing that the evidence is directly relevant to a claim or defense. (*Harris v. Superior Court* (1992) 3 Cal.App.4th 661, 665, disapproved on another ground in *Williams v. Superior Court* (2017) 3 Cal.5th 531.) Further, discovery will only be permitted where less intrusive discovery methods are not available. (See *Allen v. Sup. Ct.* (1984) 151 Cal.App.3d 447, 449.) Thereafter, the Court must balance the privacy interests against the public interest in obtaining just results. (See *Valley Bank of Nevada v. Sup. Ct.* (1975) 15 Cal.3d 652, 657).

The parties seem to agree that the records sought are directly relevant, and essential to the fair resolution of the lawsuit; MUSD makes no meaningful argument to the contrary. Furthermore, there is no claim that less intrusive means of obtaining the discovery sought exist. Therefore, the privacy objection does not warrant denying discovery here. Notably, although Macias is a party to this action, when the privacy rights of non-parties are involved, “the target of discovery has an affirmative duty to notify the third parties of the discovery request and give them an opportunity to appear and object. (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652 [125 Cal.Rptr. 553, 542 P.2d 977]; [citation].)” (*Boler v. Super. Ct.* (1987) 201 Cal.App.3d 467, 472, fn.1.) It appears that Macias had notice of the discovery request, and these Motions, and has not offered any objection or opposition.

As for the special interrogatories seeking identification of certain employees, generally the disclosure of potential witnesses’ identities and contact information, on its own, is not particularly serious and, thus, may properly be subject to civil discovery. “[I]t is only under unusual circumstances that the courts restrict discovery of nonparty witnesses’ residential contact information.” [Citation.] These circumstances include where disclosure of the information violates the right to privacy and is unnecessary to the prosecution of the litigation or where it may endanger the witnesses.” (*Ibid.*) Here, the mere contact information of these third-party employees is not particularly sensitive. Further, there are no unusual circumstances present that would warrant restricting the discovery of this information in this case. Defendant has pointed to no compelling reason to abridge Plaintiffs’ right to discovery of potential witness information. “Central to the discovery process is the identification of potential witnesses.” (*Puerto v. Sup. Ct.* (2008) 158 Cal.App.4th 1242, 1249.) “Indeed, our discovery system is founded on the understanding that parties use discovery to obtain names and contact information for possible witnesses as the starting point for further investigations... ‘...The party’s ability to subpoena witnesses presumes that he has the witnesses’ contact information.’ [Citation.]” (*Id.* at p. 1250.) Here, the information requested is fairly narrow, identification only.

Plaintiff has successfully shown that information contained in Macias’ personnel file, and the number and identity of certain employees, is directly relevant to his claims against MUSD for negligent hiring, supervision, and retention. Further, in the case *In re Clergy Cases* (2010) 188 Cal.App.4th 1224, 1235, the appellate court found that the compelling social interest in disclosure of information relating to sexual predators of children outweighed the individual [defendants’] privacy interests.” This determination was based on the principle that the state has a compelling interest in protecting citizens, particularly those most vulnerable, like minor children, from sexual assault and molestation. (*Burt v. County of Orange* (2004) 120 Cal.App.4th 273, 285.) Therefore, Court concludes that the need for disclosure here outweighs the rights of privacy raised by the Defendant MUSD.

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Based upon the nature of the requests however, the Court will require the parties to enter into a protective order limiting the use and dissemination of the records for purposes of this litigation only, to assuage lingering privacy concerns. (See *Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1427.)

The Court therefore orders MUSD to serve further code-compliant responses, except to those requests mooted by supplemental responses, within 10 days of this order.

D. Sanctions

Unsuccessfully making or opposing a motion to compel discovery can subject a party to sanctions unless that party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), & 2033.290, subd. (d).) The court should grant the request for sanctions unless it finds that a party acted with “substantial justification” in opposing the discovery. “Substantial justification means clearly reasonable justification that is well grounded in both law and fact.” (*Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1269.) “The party subject to sanctions bears the burden to establish it acted with substantial justification or other circumstances make the imposition of the sanction unjust.” (*Ibid.*)

A trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should “attempt[] to tailor the sanction to the harm caused by the withheld discovery.” (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213, 229.) “Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. [Citation.] Because discovery sanctions are not designed to punish, “sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct.” [Citation.]” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 74.)

For those reasons, the Court reduces the amount of sanctions requested against Defendant and counsel, jointly and severally, to \$2,000 per motion, for a total of \$4,000. The Court orders Defendant to make payment within ten days.